

Rules Made Under Bengal Ferries Act, 1885

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State of Bihar - Act

Rules Made Under Bengal Ferries Act, 1885

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Rules Made Under Bengal Ferries Act, 1885

Rule RULES-MADE-UNDER-BENGAL-FERRIES-ACT-1885 of 1885

Published on 9 March 1937

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Rules Made Under Bengal Ferries Act, 1885

1.

Circular No. 1059-L.S.G., dated the 9th March 1937, regarding model Rules framed under the Bengal Ferries Act.

Letter no. 1059-L.S.G., dated Patna, the 9th March 1937, from N.K.R. Menon, Esq, I.C.S., Officiating Secretary to the Government of Bihar, Local Self-Government Department, to the Commissioners of Patna, Tirhut, Bhagalpur, and Chota Nagpur Divisions.

Subject - Model Rules framed under the Bengal Ferries Act, 1885.

(For Commissioner, Patna Division only)

With reference to the correspondence resting with your

(Personal Assistant's) letter no. G-933, J-4651, 1791-J, and

562-J, dated the March, 1934, 21st June, 1934, 7th May, 1934 and

22nd February, 1934.

I am directed to enclose herewith 2 sets of model rules framed by Government under Sections 15 and 22 of the Bengal Ferries Act, 1885, for the management of ferries, in supersession of all previous rules on the subject and to request that these may be circulated among the district boards and municipalities in your division for their adoption with the sanction of Government.

2.

The revised rules framed under Section 15 of the Act, as they now stand will apply only to public ferries the management of which has not been vested in any local authority or what may be called the "reserved" ferries. In case of "transferred" ferries i.e., the management of which has been vested in a local authority these model rules should be adopted by the local authority concerned with only this alternative that the term "district board", "local board" or "municipality" as the case may be should be substituted for the term "Magistrate" throughout. Similarly, in the model form of agreement which is appended to these rules it will also be necessary to make suitable substitution for the term "Secretary of State for India in Council", "Government", and the like; but in clause 4(g) of the agreement form the expression "District Officer" should stand unchanged.

3.

I am to add further that Government consider it very important that power should be vested in the District Magistrate and the local authority concerned as the case may be for inspection of ferry boats and to realise the cost of such inspection from the lessees concerned. A provision to this effect has accordingly been made in clause 4(h) of the form of agreement. The intending bidders should be made aware of this term in the notice calling for bids.

Model rules under Section 15 of the Bengal Ferries Act for the management of public ferries with the model form of Agreement

[Circulated with Government letter no. 1059-L.S.G., dated the 9th March 1937.]

1. In these rules the term Magistrate includes the District Magistrate of.....and any Magistrate subordinate to him and appointed by him in that behalf.

2. Every public ferry in the district of.....to which these rules apply shall either be held in khas by the Magistrate or be leased by public auction.

Rules For The Management of Public Ferries held Khas

3. For every public ferry which is held khas, the Magistrate shall from time to time-

(a)
provide such boats, landing stages, rest-houses, and other appliances as he shall think proper;

(b)
appoint a suitable person to superintend the plying of the ferry, provide and pay boatmen, receive the authorised tolls and remit the same to the treasury;

(c)
fix with the approval of the Commissioner, the tolls to be levied from persons using the ferry;

(d)
cause a schedule of such tolls, legibly written in the vernacular to be fixed upon both landing stages;

(e)
determine the maximum number of passengers, animals, carts, vehicles and goods which each ferry boat shall carry, and cause a notice to this effect to be affixed to each boat;

(f)
determine the hours within which the boats shall ply, and the minimum number of journeys to be made every day;

(g)
provide for the prompt conveyance of mails at all times across the ferry.

4.

Any person may compound for tolls payable for the use of the ferry and if the ferry should be closed before the expiry of the period for which such person has compounded for tolls payable for its use, he shall be entitled to a refund the amount of which shall bear the same proportion to the whole sum paid by him as the period remaining bears to the whole period for which he compounded. Such refund shall be made under the order of the Magistrate.

Rule for leasing out ferries

5.

When it has been determined to lease the tolls of any public ferry by auction under Section 9 of Act I (B.E.) of 1885, the Magistrate shall take steps to obtain the approval of the Commissioner of the Division to the term for which the ferry is to be leased and shall, if he obtains such approval cause an advertisement of such auction to be published at least 15 days before the auction is held both in English and the vernacular, in such place and in such manner as to him shall seem expedient.

6.

(1)

The advertisement shall specify-

(a)

the time and place of the sale;

(b)

the period for which the ferry is to be leased, and the dates between which the lessee shall be bound to ply the ferry every year;

(c)

the number and description of boats to be maintained, the strength of the crew to be employed on each, and the maximum number of passengers, animals, vehicles and the bulk or weight of goods each is authorised to carry;

(d)

the liability or otherwise of the lessee to provide boats and to keep them in repair;

(e)

the liability or otherwise of the lessee to provide and to keep in order the landing stages, and the rest houses/or traveller-sheds, if any, at either or both termini of the crossing;

(f)

the minimum number of crossings to be made daily at any particular season of the year;

(g)

the rate of tolls to be levied;

(h)

the persons and things to be ferried over free of toll as provided in Rule 15;

(i)

the instalments in which the rent for the ferry is to be paid;

(j)

the amount to be deposited by the intending bidders before they are allowed to bid at the auction; and

(k)

such other particulars as the Magistrate shall consider necessary.

(2)

After a ferry has been settled for the term specified in the advertisement no extension, and subject to the provisions of Sections 13 and 14 of the Act, no curtailment of the said term shall be made.

7.

(a) A copy of the advertisement, and of the rules and the form of agreement required to be executed under Section 9 of the Act, shall be posted up in a conspicuous place in the Magistrate's office, and shall be duly notified on the day of the auction.

(b)

The District Magistrate shall personally hold the auction.

Note. - In rules relating to ferries the management of which has been transferred to a local authority under the provisions of Section 35 of the Act, this rule should provide that the Chairman of the Local Authority concerned shall personally hold the auction.

(c)

All intending bidders shall deposit one-fourth of the previous annual rent before they are allowed to bid at an auction. The deposit shall be returned to all bidders except one with whom the ferry has been settled in whose case the deposit shall be set off against the amount of rent required to be deposited by him under Rule 9. If the bidder with whom the ferry is settled, fails to execute the contract under Rule 10 within a date fixed by the Magistrate which should be not less than fifteen days after the date of bidding, the Magistrate may order forfeiture of the whole amount of the deposit.

(d)

New settlements of ferries shall be made at least three months before the expiry of the terms of the existing leases.

(e)

The maximum period for which a lease may be granted shall not exceed three years at a time.

8.

On the day of the auction, the lessee, to whom the ferry has been knocked down, shall deposit Rs as security for the due fulfilment by him of the conditions of his lease. This deposit may, however, at the discretion of the Magistrate, be dispensed with in the case of small ferries in which boats or canoes are not provided by Government.

9.

In cases in which the ferry is leased for only a year, or part of a year, the lessee shall be held liable for the rent for the entire period the moment the ferry has been knocked down to him. In cases in which the ferry is leased out for more than a year the liability for each year's rent shall accrue from the first day of the year.

10.

The contract which the lessee will be required to execute under Section 9 of the Act shall be in the form appended to these rules.

11.

The Magistrate shall, as soon as possible after the contract has been executed by the lessee, furnish him free of charge with a copy of the rules, a list of the authorised tolls duly signed under Section 19 of the Act and a copy of the entries made in the register prescribed under clause (a) of Rule 20 in respect of the ferry.

12.

(1)

The lessee shall be bound-

(a)

to provide as many boats and of such description as the Magistrate may require;

(b)

to employ such crew in, and to provide such equipment for, each such boat as the Magistrate may require.

(2)

The lessee shall not carry at a single trip in any such boat

(a)

any number of passengers, animals or vehicles, or

(b)

any bulk or other weight of freight in excess of the number or bulk or weight, as the case may be, which such boat is authorised by the Magistrate to carry.

Rules for the Management of Ferries Leased by Public Auction and for Regulating their Traffic

13.

The lessee shall be bound to ferry over diligently, carefully and with the least possible delay, all passengers, vehicles, animals and goods which may come to ferry ghat to be ferried over.

14.

The rates of tolls to be levied shall be those fixed by the Magistrate with the approval of the Commissioner under Section 18 of the Act.

15.

The lessee shall not charge or demand tolls for ferrying over-

(a)

mails, mail carts, dak-runners and Government telegraph messengers on duty;

(b)

Commissariat stores, animals and vehicles when accompanied by a challan from the Commissariat;

(c)

persons or property mentioned in Section 3 of the Indian Tolls (Army) Act, 1901.

(d)

Police and other Government servants or employees of local bodies and process-serving peons when travelling on duty with their bona fide baggage, horses, palkies or other conveyances;

- (e) members of the district and local boards of district, when travelling on duty connected with their office as such members;
- (f) coolies engaged in repairing roads, with their tools and instruments; and
- (g) persons carrying dead bodies or property sent in by police.

16.

The lessee shall not charge or demand tolls from persons who wade or swim across or take cattle or other animals or property across at their own cost and risk, or from persons who cross themselves, or take other persons across without charge, in their own boats.

17.

The ferry shall ordinarily ply between sunrise and sunset; but the lessee may employ the boats in ferrying passengers across at any time after sunset, provided each boat so employed carries a light which must be displayed in a conspicuous part of the boat.

18.

The Magistrate may, if necessary, fix the times for crossing of the mails and dak-runners, and may, as occasion arises, vary such times. He shall in all such cases give notice in writing to the lessee of the times at which the mails are to be ferried over, and it shall thereupon become the duty of the lessee to see that arrangements are specially made for the crossing of the mails immediately on their arrival at the ferry ghat, and that no delay is allowed to occur in their transit.

19.

The lessee shall provide and keep in proper order to the satisfaction of the Magistrate, the landing stages on both sides of the ferry, and shall move them when necessary according to rise and fall of the water. He shall also provide proper rest-houses or travellers' sheds on the banks of the ferry as required by the Magistrate, and shall make all proper arrangements and provide all suitable accommodation on the ferry boats for passengers and goods traffic.

He shall fix notice boards in a conspicuous place at two ends of the ferry showing in legible writing-

- (i) the schedule of tax applicable to the ferry; and
- (ii) the entries made in the register under clause (a) of Rule 2 in respect of the ferry.

20.

(a) The Magistrate shall maintain a register showing on separate pages in respect of each public ferry-

- (i) the name of the lessee and the period of lease.
- (ii) the number and description of the boats which the lessee is required to provide,
- (iii) the number of the crew required to be employed on each boat and the equipment required to be provided therefor; and
- (iv) the number of passengers, animals and vehicles and bulk weight of other freight which each boat is authorised to carry at a single trip of the entries relating to each boat shall bear a separate serial number.

(b)

As soon as possible after the entries in respect of any boat have been made in such register the Magistrate shall give to the lessee of the ferry on which such boat is authorised to ply, a copy of such entries, a coloured plate bearing the serial number of such boat, which shall be the same as the serial number under which the entries relating to such boat are included in the register, and a plate showing the particulars specified in sub-clauses (i) to (iv) of clause (a) of this rule in respect of such boat.

Note. - In Rules relating to ferries the management of which has been transferred to a local authority under the provisions of Section 35 of the Act, a further clause (c) should be added to this rule, requiring that the Local Authority concerned shall furnish a copy of such register and of every new entry or correction made in an existing entry, to the District Magistrate as soon as fresh settlement of any ferry is made, or any new entry or correction is made therein.

21.

No person shall ply any ferry boat unless-

(a)
it complies in all particulars with the entries in the register prescribed under clause (a) of Rule 20;

(b)
there is affixed in a conspicuous place inside the boat the coloured plate showing the particulars specified in sub-clauses (i) to (iv) of clause (a) of Rule 20 in respect of such boat.

22.

When any ferry which has been leased for a given period is discontinued under the orders of the Magistrate before the expiry of that period, the lessee shall be allowed a deduction in the rent payable for the unexpired portion of the term of the lease. If it be shown to the satisfaction of the Magistrate that the lessee has suffered any loss consequent on the discontinuance of the ferry, the Magistrate may allow him such compensation as he thinks is deserved.

23.

In the event of the ferry being discontinued before the expiry of the lease, either by order of the Magistrate or otherwise, all persons who have compounded for the tolls for its use shall be entitled to receive a refund calculated as in Rule 4 and unless, the claims of all such persons have been satisfied by the lease, the Magistrate shall have authority to satisfy the claims out of the deposit made by the lessee under Rule 8.

24.

The lessee shall be bound to furnish such return of traffic as may from time to time be called for by the Magistrate, and for this purpose he shall keep up a register of traffic in the form to be prescribed by the Magistrate.

25.

If the lessee desires to establish communications across the ferry by means of a bridge of any kind, he shall first obtain the sanction in writing of the Magistrate and shall, on obtaining such sanction, carry out any order which the Magistrate may make regarding the opening of such bridge for the through passage of vessels and rafts. Such bridge shall on no account obstruct the free passage of the stream.

26.

The Magistrate may at any time require the lessee to repair or replace any boat which he considers to be in a dangerous state of disrepair and the lessee shall thereupon be bound to repair or replace it as directed.

27.

The ferry boats belonging to any public ferry shall not be plied when the current, wind or state of the weather is such as to render the crossing unsafe and endanger the lives of the passengers.

28.

A register in the following form, showing the demand and collection on account of rents payable for tolls of public ferries, shall be kept up by the Magistrate:-

Receipts on account of ferryfarmed by at an annual rent of Rs.....

(Signature of officer holding sales.)

Serial no.

Detail of Payment

Payment

Payment

Remarks

Amount

Number Date of Challan

Initials of Magistrate

Initials of Treasury Officer

1

2

3

4

5

6

7

8

29.

A quarterly statement shall also be kept showing the demand, collection and arrears up to date on account of rents of public ferries.

Form of Agreement

The Secretary of State for India in Council doth hereby lease to me.....hereinafter called the lessee, son of.....resident of mouza.....paragana.....thana..... district.....and I, the said lessee, do hereby take the lease of the public ferry across the river and situated on the road from.....to.....at the.....rent of Rs.....upon and under the following terms and conditions, viz.:-

1. I the lessee, have depositedwith the intent that the Magistrate shall hold the same until the determination of the lease, as partial security for the due performance by me of the stipulations herein contained, and for the observance by me of the provisions of the Bengal Ferries Act (I of 1885) and the Rules framed under it, and may deduct therefrom any rent which may become due, or penalties which may be awarded under Sections 23, 24 and 25 of the said Act.

2. I, the lessee, do hereby acknowledge to have received a copy of the Rules under Section 15 of the Act aforesaid, and to be aware of the provisions of Section 10 of the Act under which I am legally bound to conform to them. I also acknowledge to have received a list of the tolls to be levied at the ferry.

3. The lease to me is to be for.....namely, from the.....in the.....and during this period I shall be bound to ply the ferry from ...to theevery year.

4. I hereby agree-

(a)

to provide boats for the ferry and to keep boats of such description as the Magistrate may require to ply on the ferry and to keep the said boats in a proper state* of repair and fit in every respect for the conveyance of passengers, animals and vehicles and such freight as I am entitled to carry in them in accordance with this agreement and the Bengal Ferries Act, 1885 (Bengal Act I of 1885) and the rules made thereunder;

(b)

to employ such a crew in, and to provide such equipment for, each such boat as the Magistrate may require;

(c)

to make at least crossings every day, to make arrangements that the boats should start at the hours from the landing places;

(d)

to provide and keep in order the landing stages and the travellers' sheds on either or both banks of the river and slopes and approaches to the ferry, as required by Rule 19;

(e)

to affix in a conspicuous place where the tolls are taken, near each of the landing stages, a notice boards showing-

(i)

a list of the tolls which I am authorised to demand prepared in accordance with Section 19 of the Bengal Ferries Act, 1885;

(ii)

the entries made in the register, prepared under clause (a) of Rule 20 in respect of the ferry;

(f)

to comply with the provisions of Rule 21;

(g)

to place such boats or any of them as the Magistrate may from time to time require at the disposal of the District Officer for flood relief work;

(h)

to beach the ferry boats for inspection by the Magistrate or any person authorised by him and to pay the cost of such inspection at such rate as may be fixed by Magistrate.

5. I shall not charge or demand tolls for ferrying over-

(a)

mails, mail-carts, dak-runners and Government telegraph messengers on duty;

(b)

Commissariat stores, animals and vehicles, when accompanied by a challan from the Commissarial Officer;

(c)

persons or property mentioned in [Section 3]

[Section 3 of the Indian Tolls (Army) Act.]

of the Indian Tolls (Army) Act, 1901;

The following persons and property, namely:-

(a)

All officers and soldiers of-

(i)

His Majesty's Regular Forces,*

(ii)

any local corps, or

(iii)

Imperial Service Troops, when on duty or on the march;*

(b)

All members of a corps of volunteers when on duty or when proceeding to or returning from duty;

(c)

all officers and soldiers of the Indian Reserve Forces when proceeding from their place of residence on being called out for training or service, or when proceeding back to their place of residence after such training or service;

(d)

all grass cutters when employed in the service of-

(i)

His Majesty's Regular Forces,

(ii)

any local corps,

(iii)

Imperial Service Troops, or

(iv)

any corps of volunteers.

(e)

all other authorised followers of-

(i)

His Majesty's Regular Forces,

(ii)

any local corps,

(iii)

Imperial Service Troops, or

(iv)

any corps of volunteers, when they accompany anybody of such forces, troops or volunteers or any members of such corps on the march or when they are otherwise moving under the orders of Military Authority;

(f)

all members of the families of officers, soldiers or authorised followers of-

(i)

His Majesty's Regular Forces, or

(ii)

any local corps.

when accompanying any body of troops, or any officer, soldier or authorised follower thereof on duty or on the march;

(g)

all prisoners under military escort;

(h)

the horses and baggage and the persons (if any) employed in carrying the baggage of any persons exempted under any of the foregoing clauses, when such horses, baggage or persons accompany the persons so exempted under the circumstances mentioned in those clauses respectively;

(i)

all carriages and horses belonging to His Majesty or employed in His Majesty's Military Service and all persons in charge of or accompanying the same when conveying any such persons as hereinbefore in this section mentioned or when conveying baggage or stores or when returning unladed from conveying such persons, baggage or stores;

(j)

all carriages and horses when moving under the orders of military authority for the purpose of being employed in His Majesty's Military service;

(k)

all animals accompanying any body of troops which are intended to be slaughtered for food or kept for any purpose connected with the provisioning of such troops; and

(l)

all persons in charge of any carriage, horse or animal exempted under any of the foregoing clauses when accompanying the same under the circumstances mentioned in those clauses respectively, shall be exempted from payment of any tolls;

(i)

on embarking or disembarking or on being shipped or landed from or upon any landing place; or

(ii)

in passing along or over any turnpike or other road or bridge; or

(iii)

on being carried by means of any ferry, otherwise demandable by virtue of any Act, Ordinance, Regulation, Order or Direction of any legislature or other public authority in British India:

Provided that nothing in this section shall exempt any boats, barges or other vessels conveying the said persons or property along any canal from payment of tolls in like manner as other boats, barges and vessels.

(m)

Police and other Government servants or employees or local bodies and process-serving peons, panchayats and village chaukidars when travelling on duty with their bona fide luggage, horses, palkies or other conveyances;

(n)

members of the district and local boards of district when travelling on duty connected with their office as such members;

(o)

coolies engaged in repairing roads with their tools and instruments;

(p)

persons carrying dead bodies or property sent by police.

[* Government Regular forces, Regular Troops of the Govt, may be read-Instead of his Majesty etc. as* Indian is not under the British Crown]

6. I, shall not charge or demand tolls from persons who wade or swim across, or take cattle or other animals or property across at their own cost and risk, or from persons who cross themselves, or take other persons across without charge, in their own boats.

7. I, hereby agree to pay the rent in the following instalments into the district treasury in the credit of the Secretary of State:-

Rs. a. p

Date

First

...

...

...

...

Second

...

...

...

...

Third

...

...

...

...

Fourth

...

...

...

...

and further agree to file in the office of within two days after due date of payment a duplicate challan or treasury receipt in proof of such payment. But, if at any time before the expiry of the period for which the ferry has been leased to me, I be removed therefrom for any breach of the terms and conditions of the lease, or for any wilful breach of any of the rules under Section 15 of the Act, I shall be liable to pay rent up to and including the instalment due next after my removal.

8. If the rates of toll are reduced during the currency of my lease or the exemptions from the payment of it are extended, this agreement is to be modified accordingly. I shall be given a fair opportunity of satisfying the Magistrate as to the effect of the change and if the terms proposed by him thereafter are not such as I can reasonably accept, I will, according to the law, immediately carry into effect the order reducing the rates of toll, or extending the exemption from payment of it, but will at the same time state the amount of rent I may be willing to pay under the altered circumstances of the case. Should my offer appear to the Magistrate to be inadequate it shall be competent to him to remove me, and place another person in charge of the ferry and for such time as I remain in charge of the ferry after the issue of the order reducing the rates of tolls, or extending the exemption from payment of it, I shall pay rent only at the rate tendered by me.

9. If I make default in the payment of the rent for the ferry or of any penalty which may be lawfully imposed, or if I do not observe and perform the covenants herein contained, it shall be lawful for the Magistrate to remove me from the charge of the ferry and to settle the same with some other person or hold it khas. After such removal I shall not be entitled to any part of the proceeds of the ferry or to levy any toll therefor. And if the rent on reletting the ferry falls short of the amount at which it was leased to me, and the Government thereby incur loss, I shall be held responsible for such difference or loss the amount of which may be deducted from my deposit. If the deposit does not cover the loss incurred, the rent due from me (and the amount or toll refunded by the Magistrate under Rule 23 of the Rules under Section 15 of the Act, the total amount which is deficient shall be recoverable in the manner set forth in Section 12 of the Act) and all sums which I become liable to pay in virtue of this agreement shall be recoverable as a public demand under the provisions of the Bihar and Orissa Public Demands Recovery Act, 1914. It shall be lawful for the Magistrate to deduct the amount of rent which I may default to pay from my security deposit and to direct me to recoup the same within a given time and on my failure to do so to remove me from the charge of the ferry.

10. I will not assign, sublet or part with the possession of the ferry without the previous consent in writing of the Magistrate.

11. I shall not claim any compensation on account of roads being closed for repairs or on account of inundation or the breaking down of bridges or on account of deficiency of water in the river on which the ferry is situated.

Rules under Section 22, of the Bengal Ferries Act for the management of Private Ferries

Rule 1. - All private ferries shall be registered in the office of the Magistrate of the District in which they are situated and particulars under the following heads shall be entered in the application for registration:-

(a)

Name of the ferry and names of the villages and thana in which and the river across which it is situated.

(b)

The number and description of the boats to be maintained and the strength of the crew to be employed on each.

(c)

The maximum number of passengers, animals, vehicles and bulk or weight of goods to be carried by each boat.

(d)

The periods or seasons during which the ferry is to be plied every year.

Rule 2 - Before a private ferry is registered the Magistrate shall satisfy himself that the statements contained in the application are correct.

Rule 3 - If the proprietor of any private ferry shall not apply, as required by Rule 1, for the registration within three months from the publication of these rules, the Magistrate of the District may serve upon him a written notice requiring him to furnish the particulars stated in Rule 1 within a stated period of not less than one month; and any proprietor on whom such a notice has been served in respect of any ferry shall not maintain the same or allow it to be maintained after the expiry of the period fixed in such notice, unless the particulars required by Rule 1 shall have been furnished to Magistrate as ordered.

Rule 4 - The proprietor of every private ferry shall be bound to adhere to the terms of his application, or of any statement furnished by him under Rule 3 and shall not reduce the number of boats or crews to be maintained by him, or allow any of his boats to carry an excess number of passengers, animals, vehicles or weight or bulk of goods.

Rule 5 - The proprietor shall mark on each boat the number of passengers, animals and vehicles and the bulk and weight of other things it is authorised to carry at a single trip.

Rule 6 - The ferry shall ordinarily ply between sunrise and sunset but the proprietor may ply the boats after sunset provided each boat carries a light which must be exhibited in a conspicuous part of the boat.

Rule 7 - The ferry shall not ply when the current, wind or state of the weather is such as to render the crossing unsafe or to endanger the lives of the passengers.

Rule 8 - The Magistrate may direct that any boat used in any private ferry may be examined by such officers as he may depute and may prohibit the use of such boat if he is satisfied that it is of such a kind or in such a condition that its use is dangerous to life or property.

Rule 9 - The owner of every private ferry shall report without delay at the police-station within whose jurisdiction the ferry is situated, the occurrence of any accident at the ferry resulting in serious injury or in loss of life.

Rule 10 - The Magistrate may require the owner of any private ferry to state the name of any person to whom such ferry may be leased or who may be placed in charge of such ferry.

Rule 11 - The person in charge of a private ferry, and all persons employed in working a private ferry boat, shall be responsible that such boat shall not be overladen; and every person having been directed not to enter a fully laden boat or not to load animals and goods in it, shall be bound to obey such direction.

Rules relating to the Patna-Ganges Ferries with the form of agreement

[As made by the District Magistrate of Patna and approved by the Commissioner of the Patna Division under Section 15 of the Act and published with Government Notification No. 2184-L. S.G., dated the 13th February 1929 and as amended by Notification No. 14429 L.S.G., dated the 14th December 1929.]

1. In these Rules, unless, there be something repugnant in the subject or context, the term-

(a)

"Magistrate" includes the District Magistrate of Patna and any Magistrate subordinate to him and appointed by him in that behalf.

(b)

"Patna-Ganges Ferries" means the public ferries named below

1.

From Digha

to

Pahleza.

2.

Ditto

to

Sabalpur-Mahendru.

3.

Ditto

to

Sabalpur-Ranighat.

4.
Ditto
to
Sonepur.
5.
Ditto
to
Konhara.
6.
Ditto
to
Barabanki.
7.
Ditto
to
Litiahi.
8.
From Mahendru
to
Pahleza
9.
Ditto
to
Sabalpur-Mahendru.
10.
Ditto
to
Sabalpur-Ranighat.
11.
Ditto
to
Sonepur.
12.
Ditto
to
Konhara.
13.
Ditto
to
Barabanki.
14.
Ditto
to
Litiahi.
15.
From Ranighat
to
Pahleza.
16.
Ditto
to

Sabalpur-Mahendru.
17.
Ditto
to
Sabalpur-Ranighat.
18.
Ditto
to
Sonepur.
19.
Ditto
to
Konhara.
20.
Ditto
to
Barabanki.
21.
Ditto
to
Litiahi.
22.
From Khajekalan
to
Pahleza.
23.
Ditto
to
Sabalpur-Mahendru.
24.
Ditto
to
Sabalpur-Ranighat.
25.
Ditto
to
Sonepur.
26.
Ditto
to
Konhara.
27.
Ditto
to
Barabanki.
28.
Ditto
to
Litiahi.
29.
From Marufganj

to
Pahleza
30.
Ditto
to
Sabalpur-Mahendru.
31.
Ditto
to
Sabalpur-Ranighat.
32.
Ditto
to
Sonepur.
33.
Ditto
to
Konhara.
34.
Ditto
to
Barabanki.
35.
Ditto
to
Litiahi.
36.
From Damriahi
to
Pahleza
37.
Ditto
to
Sabalpur-Mahendru,
38.
Ditto
to
Sabalpur-Ranighat.
39.
Ditto
to
Sonepur.
40.
Ditto
to
Konhara.
41.
Ditto
to
Barabanki.
42.

Ditto
to
Litiahi.
43.
From Jethuli
to
Pahleza.
44.
Ditto
to
Sabalpur-Mahendru.
45.
Ditto
to
Sabalpur-Ranighat.
46.
Ditto
to
Sonepur.
47.
Ditto
to
Konhara.
48.
Ditto
to
Barabanki.
49.
Ditto
to
Litiahi.

2. Every Patna-Ganges Ferry shall either be held be leased by public auction.

Rules for the Management of the Patna-Ganges Ferries held khas.

3. For every Patna-Ganges Ferry which is held Khas the Magistrate shall from time to time-

- (a)
provide such boats, landing stages, rest houses and other appliances as he shall think proper;
- (b)
appoint a suitable person to superintend the plying of the ferry, provide and pay boatmen, receive the authorised tolls and remit the same to the Treasury;
- (c)
fix with the approval of the Commissioner, the tolls to be levied from persons using the ferry;
- (d)
cause a schedule of such tolls legibly written in the vernacular to be fixed up upon both landing stages;
- (e)
determine the maximum number of passengers, animals, carts, vehicles and goods which each ferry boat shall carry and cause a notice to this effect to be affixed to each boat;
- (f)
determine the hours within which the boats shall ply and the minimum number of journeys to be made everyday;
- (g)
provide for the prompt conveyance of the mails at all times across the ferry.

4. Any person may compound for tolls payable for the use of the ferry, and if the ferry should be closed before the expiry

of the period for which such person has compounded for tolls payable for its use he shall be entitled to a refund, the amount of which shall bear the same proportion to the whole sum paid by him as the period remaining bears to the whole period for which he compounded; such refunds shall be made under the orders of the Magistrate.

Rules for Leasing out the Patna-Ganges Ferries.

5. When it has been determined to lease the tolls of any Patna-Ganges ferry by auction under Section 9 of Act 1 of 1885, the Magistrate shall, atleast 15 days before the auction is held, cause an advertisement of such auction to be published both in English and in the vernacular, in such place and in such manner as to him shall seem expedient:

["Provided that no notice shall be necessary where the Magistrate considers it necessary to postpone/adjourn the auction due to any reason considered necessary by him."]

[Added vide S.O. 1196 dated 4.10.1975.]

6. The advertisement shall specify-

(a)

the time and the place of sale;

(b)

the period for which the ferry is to be leased, and the dates between which the lessee shall be bound to ply the ferry every year;

(c)

the number and the description of the boats to be maintained, the strength of the crew to be employed on each, and the maximum number of passengers, animals, vehicles and the bulk or weight of goods each is authorised to carry;

(d)

the liability or otherwise of the lessee to provide the boats and to keep them in repair;

(e)

the liability or otherwise of the lessee to provide and keep in order the landing stage, and the rest houses or travellers' shed, if any, at either or both termini of the crossing.

(f)

the minimum number of crossings to be made daily at any particular season of the year;

(g)

the rate or tolls to be levied;

(h)

the persons and things to be ferried over free of toll as provided in Rule 15;

(i)

the instalments in which the rent for the ferry is to be paid;

(j)

the amount to be deposited by the intending bidders before they are allowed to bid at the auction; and

(k)

such other particulars as the Magistrate shall consider necessary.

7. A copy of the advertisement and of the rules and the form of agreement required to be executed under Section 9 of the Act shall be posted up in a conspicuous place in the Magistrate's Office and shall be duly notified on the day of the auction.

(a)

The District Magistrate shall personally hold the auction.

(b)

All intending bidders shall deposit one-fourth of the previous annual rent before they are allowed to bid at any auction. The deposits shall be returned to all bidders except the one with whom the ferry has been settled in whose case the deposit shall be set off against the amount of rent required to be deposited by him under Rule 8.

(c)

New settlements of ferries shall be made at least three months before the expiry of the terms of existing leases.

(d)

The maximum period for which a case may be granted shall not exceed three years at a time.

8. On the day of the auction the lessee to whom the ferry has been knocked down, shall deposit 25 per cent of the amount of the bid as security for the due fulfilment by him of the conditions of his lease. This deposit may, however, at

the discretion of the Magistrate be dispensed with in the case of small ferries in which boats or canoes are not provided by Government.

9. In cases in which the ferry is leased for only a year or part of a year the lessee shall be held liable for the rent for the entire period the moment the ferry has been knocked down to him. In cases in which the ferry is leased for more than a year the liability for each year's rent shall accrue from the first day of the year.

10. The contract which the lessee will be required to execute under Section 9 of the Act shall be in the form appended to these rules.

11. As soon as possible after the contract has been executed by the lessee the Magistrate shall furnish him free of charge with a copy of these rules, a list of the authorised tolls duly signed under Section 19 of the Act and two notice boards "for each ferry" having written on them legibly in the vernacular the schedule of tolls applicable to the ferry, the number of boats which the lessee is bound to keep plying, the number of men by whom each boat is to be manned, and the maximum number of passengers etc., each boat is allowed to carry. The notice boards shall be fixed by the lessee in a conspicuous place at both ends of the ferry and shall be kept by him in a proper condition. On the expiry of his lease they shall be returned by him to the Magistrate.

12. The lessee shall be bound to ferry over diligently, carefully and with the least possible delay, all passengers, vehicles, animals and goods which may come to the ferry ghat to be ferried over.

["The lessee shall be bound to ferry over diligently, carefully and with the least possible delay, all passengers, light vehicles, animals and goods which may come to the ferryghat to be ferried over."]

[Added vide S.O. No. 1196 dated 4.10.1975.]

13. The rate of tolls to be levied shall be those fixed by the Magistrate with the approval of the Commissioner under Section 18 of the Act.

14. The lessee shall not claim any compensation for loss of rent on account of the concession granted to the Bengal and North-Western Railway Company to convey without payment of tolls Railway passengers and goods from Pahleza Ghat to Digha Ghat and the Patna City Ghats and back.

15. The lessee shall not charge or demand tolls for ferrying over-

- (a)
mails, mail carts, dak runners and Government telegraph messengers on duty;
- (b)
commissarial stores, animals, vehicles when accompanied by a challan from the commissariat; '
- (c)
persons or property mentioned in Section 3 of the Indian Tolls (Army) Act, 1901;
- (d)
police and other public officers and process-serving peons when travelling on duty with their bona fide luggage, horses, palkies, or other conveyances;
- (e)
coolies engaged in repairing roads with their tools and instruments;
- (f)
persons carrying dead bodies or property sent in by the police;
- (g)
members of the district or local boards when travelling on duty;
- (h)
officers and members of the Patna Municipality when travelling on duty.

16. The lessee shall not charge or demand tolls from persons who wade or swim across or take cattle or other animals or property across at their own cost and risk or from persons who cross themselves or take other persons across without charge in their own boats.

17. The lessee shall issue printed tickets to all passengers in a form and manner and according to a system or accounts approved by the Magistrate at all the ghats on both sides of the Ganges and shall keep through his agents at the various ghats systematic accounts which shall be open to inspection by the Magistrate.

18. The ferry shall ordinarily ply between sunrise and sunset; but the lessee may employ the boats in ferrying passengers across at any time after sunset provided each boat so employed carries a light which must be displayed in a conspicuous part of the boat.

19. The Magistrate may, if necessary, fix the times for the crossing of the mails and dak runners, and may as occasion arises vary such times. He shall in all such cases give notice in writing to the lessee of the times at which the mails are to be ferried over and it shall thereupon become the duty of the lessee to see that arrangements are specially made for the crossing of the mails immediately on their arrival at the ferry ghat and that no delay is allowed to occur in their transit.

20. The lessee shall provide and keep in proper order to the satisfaction of the Magistrate, the landing stages on both sides of the ferry, and shall move them when necessary, according to the rise and fall of the water. He shall also provide proper rest houses or traveller's sheds on the banks of the ferry as required by the Magistrate, and shall made all proper arrangements and provide all suitable accommodation on the ferry boats for passenger and goods traffic.

21. The lessee shall, from time to time, report in the Office of the District Magistrate the boats and steamers which he intends to ply at the various ghats of the ferries settled with him and shall affix to each of them a plate to show the number of passengers, animals and vehicles and the bulk and weight of other things that may be carried in each kind of boat at one trip and shall also report the name of his agent (if any) and changes in his appointment.

22. When any ferry which has been leased for a given period is discontinued under the orders of the Magistrate before the expiry of that period the lessee shall be allowed a deduction in the rent payable for the unexpired portion of the term of the lease. If it be shown to the satisfaction of the Magistrate that the lessee has suffered any loss consequent on the discontinuance of the ferry the Magistrate may allow him such compensation as he thinks is deserved.

23. In the event of the ferry being discontinued before the expiry of the lease either by order of the Magistrate or otherwise, all persons who have compounded for the tolls for its use shall be entitled to receive a refund calculated as in Rule 4 and unless the claims of all such persons have been satisfied by the lessee the Magistrate shall have authority to satisfy the claims out of the deposit made by the lessee under Rule 8.

24. The lessee shall, when required by the Magistrate to do so but not otherwise, furnish all information in his power, regarding suspicious persons or classes of persons who may have been or may come to be ferried over.

25. The lessee shall be bound to furnish such returns of traffic as may from time to time be called for, by the Magistrate and for this purpose he shall keep up a register of traffic in the Form to be prescribed by the Magistrate.

26. The lessee shall keep at each landing stage an inspection book in which inspecting officers may record their remarks.

27. On any exceptional occasion, the lessee, on a due notice sent to him shall provide and keep such a number of boats, as the district or municipal board may direct and for such time as the occasion may require.

28. If the lessee desires to establish communication across the ferry by means of a bridge of any kind he shall first obtain the sanction in writing, of the Magistrate and shall, on obtaining such sanction, carry out any orders which the Magistrate may make regarding the opening of such bridge for the through passage of vessels and rafts. Such bridge shall on no account obstruct the free passage of the stream.

29. The Magistrate may at any time require the lessee to repair or replace any boat which he considers to be in a dangerous state of disrepair and the lessee shall thereupon be bound to repair or replace it as directed.

30.

Police Officers will report at once any instance of mismanagement of a public ferry, the insecurity of the boats, landing stages, slopes or approaches, and any other defect in the working of the ferry which may come to their notice.

31.

The ferry boats belonging to any public ferry shall not be plied when the current, wind, or state of the weather is such as to render the crossing unsafe and endanger the lives of the passengers.

32.

A register in the following form showing the demand and collection on account to rents payable for tolls of the Patna-Ganges Ferries shall be kept up by the Magistrate:-

Receipts on account of ferry.....formed by.....at an annual rent of Rs

Signature of Officer holding sales.

Serial no.

Details of payments

Amount

Payment

Amount

Date
No. of challan
Initials of Magistrate
Initials of Treasury Officer
Remarks

1
2
3
4
5
6
7
8
9
33.

A quarterly statement shall also be kept showing the demand, collection and arrears up to date on account of rents for the Patna-Ganges Ferries.

Forms of Agreement under Section 9 of the Bengal Ferries Act (Rule 10).

The Secretary of State for India in Council doth hereby lease to meson of.....resident of.....district.....hereafter called the lessee, and I, the said lessee, do hereby take the lease of the public ferries across the river, namely.....at the annual rent of Rs.....from.....200.....to.....200.....upon and under the following terms and conditions:-

2. I, the lessee, have deposited Rs only with the intent that the Magistrate of Patna shall hold the same until the determination of the lease, as partial security for the due performance by me of the stipulations herein contained, and for the observance by me of the provision of the Bengal Ferries Act I (B.C.) of 1885 and the rules framed under it, and may deduct therefrom any rent which may become due or penalties which may be awarded under Sections 23 to 25 of the said Act. I, the lessee, do hereby acknowledge to have received a copy of the Rules under Section 15 of the aforesaid Act and to be aware of the provisions, of Section 10 of the aforesaid Act, under which I am legally bound to conform to them. I also acknowledge to have received a list of the tolls to be levied at each ferry.

3. The lease to me is for the periods noted against each ferry named in Schedule I and I shall be bound except, with the written permission of the Magistrate to the contrary, to ply ferries during the said periods.

4. I hereby agree-

(a)

to provide a sufficient number of boats and one or more steamers as the Magistrate may from time to time direct for the ferries and to keep the boats and steamers in proper repair, to take proper care thereof and in default to pay to the Magistrate the cost of such repairs as are rendered necessary through any carelessness.

(b)

to employ a crew of a sufficient number of men on each boat;

(c)

to make a reasonable number of crossings every day;

(d)

to provide and keep in order the landing stage and the traveller's sheds at either or both banks of the river and the slopes and approaches to the ferries;

(e)

to provide, when required, for the transport of artillery or other heavy Government property a boarded platform properly fenced supported on two boats which can be propelled by oars.

(f)

to affix the table of tolls furnished by the Magistrate at some conspicuous place near each landing stage; and

(g)

to place such ferry boats as the Chairman of the District Board may from time to time require at the disposal of the District Officer for flood relief work.

5. I shall not charge or demand tolls, for ferrying over-

- (a) mails, mail-carts, dak-runners, and Government telegraph messengers on duty;
- (b) Commissariat stores, animals and vehicles when accompanied by a challan from the Commissariat Office;
- (c) persons or property mentioned in Section 3 of the Indian Tolls (Army) Act, 1901;
- (d) police and other public officers and process-serving peons when travelling on duty with their bona fide baggage, horses, palkies or other conveyances;
- (e) coolies engaged in repairing roads with their tools and instruments;
- (f) persons carrying dead bodies or properties sent in by the police;
- (g) members of the District or Local Boards when travelling on duty connected with their offices as such members; and
- (h) officers and members of Patna Municipality when travelling on duty.

6. I shall not charge or demand tolls from persons who wade or swim across or take cattle or other animals or property across at their own cost and risk or from persons who cross themselves or take other persons across without charge in their own boats.

7. I hereby agree to pay rent into the district treasury in monthly instalments of Rs.....to the credit of the Secretary of State on the 1st day of each month and if it is a holiday on the next open day and further agree to file in the office of Magistrate within two days after due date of payment a duplicate challan or treasury receipt in proof of such payment. But if at any time before the expiry of the period for which the ferries have been leased to me, I be removed therefrom for any breach of the terms and conditions of the lease, or for any wilful breach of any of the Rules under Section 15 of the Act, I shall be liable to pay rent up to and including the instalment due next after my removal.

8. If the rates of tolls are reduced during the currency of my lease or the exemption, from the payment of it are extended this agreement is to be modified accordingly. I shall be given a fair opportunity of satisfying the Magistrate as to the effect of the change, and if the terms proposed by him thereafter are not such as I can reasonably accept. I will accordingly to the law immediately carry out the order reducing the rates of the toll or extending the exemption from payment of it, but will at the same time state the amount of rent I may be willing to pay under the altered circumstances of the case. Should my offer appear to the Magistrate to be inadequate it shall be competent to him to remove me and place another person in charge of the ferries and for such time as I may remain in charge of the ferries after the issue of the orders regarding the rates of tolls or extending the exemption from the payment of it, I shall pay rent only at the rate tendered by me.

9. If I may default in the payment of the rent for the ferries or of any penalty which may be lawfully imposed, or if I do not observe and perform the covenants herein contained, it shall be lawful for the Magistrate to remove me from the charge of the ferries and to settle the same with some other person or hold it khas. After such removal, I shall not be entitled to any part of the proceeds of the ferry or to levy any toll therefor. And if the rent on reletting the ferries fall short of the amount at which they were leased to me and the Magistrate thereby incur loss, I shall be held responsible for such difference or loss, the amount of which may be deducted from my deposit. If the deposit does not cover the loss incurred, the rent due from me (and the amount of tolls refunded by the Magistrate under Rule 23 of the rules under Section 15 of the Act, the total amount which is deficient shall be recoverable in the manner set forth in Section 12 of the Act) and all sums which I become liable to pay by virtue of this agreement shall be recoverable as a public demand under the provisions of the Bihar and Orissa Public Demand Recovery Act, 1914 (Bihar and Orissa Act IV of 1914). It shall be lawful for the Magistrate to deduct the amount of rent which I may default to pay from my security deposit and to direct me to recoup the same within a given time and on my failure to do so to remove me from the charge of the ferry.

10. I will not assign, sub-let or part with the possession of the ferry, without the previous consent in writing of the Magistrate.

11. I shall not claim any compensation from the lessor on account of the absence of or lack of repairs to any approaches

to the landing stages on either bank or on account of roads being closed for repairs or on account of inundation or the breaking down of bridges or on account of deficiency of water in the river on which the ferries are situated.

12. I agree to the terms of the concessions granted to the Bengal and North-Western Railway Company, viz., that they are entitled to convey railway traffic and passengers but not other traffic or passengers between Marufganj ghat and the Railway Terminus on the North bank of the river and that they be allowed for this purpose to establish and maintain intermediate stations on the South bank of the river Ganges.

13. I agree to issue printed tickets to all passengers in a form and manner and according to a system of accounts approved by the Magistrate at all the ghats on both sides of the Ganges and to keep through our agents at the various ghats systematic accounts which shall be open to inspection by the Magistrate.

14. I agree to report from time to time in the office of the District Magistrate the boats and steamers which I intend to ply at the various ghats of the ferries settled with me and shall affix to each of them a plate to show the number of passengers, animals and vehicles and the bulk and weight to other things that may be carried in each kind of boat at one trip. I also agree to report the name of my agent (if any) and changes in their appointment.

15. If I have not available sufficient boats or other appliances to carry on the ferries, I agree to take over such appliances of the former lessee as registered at a valuation to be fixed by the District Magistrate in consultation with the Executive Engineer, Patna Division and in that case I agree to pay one fourth of the total cost of the appliances on the day of settlement and the balance in three quarterly instalments, viz 18th July, 18th October and 18th January, following. In the event of non-fulfilment of the condition, the lease shall be liable to be cancelled.

16. We hold ourselves, jointly and severally, responsible for the fulfilment of all the terms and conditions, of the lease and the lessor (the District Magistrate) is entitled to realise jointly or severally from us (the lessees) any rent falling due or compensation for any loss sustained, and to enforce any of the terms and conditions contained in the lease as against all or any of the lessees as he considers proper. (This clause is to be inserted in the lease only when the contract is entered into with more than one lessee taking the farm of the ferry.)

Part III ? Important Circulars and Notifications Under The Act

Circulars regarding instructions to local officers for strict enforcement of the law relating to ferries for avoiding ferry accidents and boat disasters.

Letter No. 9440, L.S.G. DIF-21/49, dated Patna the 21st June, 1949, from Mr. J.N. Prasad B.A. (Hons.) Under Secretary to the Government of Bihar, Local Self-Government Department, to all Commissioners of Divisions.

Subject. - Instructions to local officers regarding strict enforcement of the law relating to ferries.

I am directed to say that the attention of Government has been drawn to the increasing number of accidents attended with the loss of life resulting from overloading or the unsafe condition of ferry boats or their plying in dangerous weather and current or from unauthorised Ghats. It appears that in some cases the provisions of the Bengal Ferries Act, 1885, and the rules framed thereunder are not strictly enforced though instructions emphasising the importance of their observance have been issued by Government from time to time.

There are specific provisions in the Model Rules framed by Government under Sections 15 and 22 of the Bengal Ferries Act, 1885 for preventing overloading of ferry boats (both public and private) or their plying in a dangerous state of weather, wind and current. In the opinion of Government if the existing rules are strictly enforced boat disasters can be easily avoided.

I am to request that the attention of District Magistrates, Superintendents of Police and of the local bodies in your division may be drawn to the importance and necessity of rigid observance of the provisions of the Ferries Act and the rules made thereunder with regard to all matters including the cancellation of existing leases under Section 13 of the Bengal Ferries Act, 1885 and the institution of prosecutions under the appropriate sections for infringement of the rules. District Magistrates should also be advised-

(i)

to tighten up control over the ferries (both public and private);

(ii)

to start a special drive against overloading of ferry boats and to report to Government the number of prosecutions under the Bengal Ferries Act, 1885 or under Section 282, I.P.C. initiated by them;

(iii)

to ensure that on the occasion of all fairs and festivals, when a large number of persons are likely to travel by these ferries, Magistrates and Police Officers are specially deputed to regulate the traffic on ferry boats;

(iv)

to call the attention of Police to Rule 99 of the Police Manual and to instruct them to co-operate in ensuring that ferry rules are strictly observed by the ferry farmer; and

(v)

to ensure that Officers-In-Charge of police-stations-particularly of the police-stations lying in mufasil areas where it is not possible for magistracy to exercise any effective control over ferries-exercise regular supervision over ferries with a view to prevent overloading of boats or their plying in dangerous state of weather, wind and current.

Letter no. 1976-80-L.S.G.R., dated Ranchi, the 25th July, 1955, from H.E. Horsfield, Esq., I.C.S., Secretary to the Government of Bihar and Orissa Ministry of Local Self-Government, to all Commissioners of Divisions.

The attention of Government has been drawn to the number of accidents attended with loss of life resulting from the overcrowding or the unsafe condition of ferry boats. I am, therefore, to ask that the conditions under which all ferries, both public and private are working may be carefully examined by you in consultation with the District Magistrates and the local bodies of your Division.

2. Public ferries. - Model Rules have been drafted under Section 15 of the Bengal Ferries Act which provide inter alia for the regulation of loads and the maintenance of boats and empower the Police to report all defects in the management of a ferry (Rules 19, 25 and 26) while breaches of the rules in respect of the overloading of ferry boats are penalised and Section 31 empowers the Police to arrest certain offenders. If the Model Rules or any other rules under Section 15 have been adopted, their validity has not been affected by the transfer of the superintendence of ferries from the Magistrate to the local bodies. I am to enquire whether rules under this Section are in force in respect of public ferries within your division and whether they are operating suitably to the object in view and are strictly enforced. Should it be the case that any public ferry under a local body is not at present subject to any rules, that local body should be invited to adopt Model Rules with such modification (to be approved by you) as are suitable. If from enquiry it appears that any ferry, where rules are in force, is not being worked in a satisfactory manner, I am to request that if the faults in working are due to defects in rules, the local body may be requested to change the rules in such a way as to remove the defects. If the faults in working are not due to any defect in the rules but to nonenforcement of the rules, the local body concerned should be requested to see that the rules are properly enforced and the District Magistrate also should be asked to take such steps as are necessary for their enforcement.

3. Private ferries. - Under the Bengal Ferries Act, all ferries which have not been declared public are private, and are subject to any rules made by the Commissioner under Section 22, I am, therefore, to request that the existing rules may be carefully examined and amended if necessary to provide adequately for the safety and convenience of the public. If no rules have been adopted immediate steps should be taken to frame them under Section 22 of the Act adopting, as a model, the rules printed at page 592 of the Colliers Local Self-Government Hand Book. The special attention of District Magistrates should be drawn to the enforcement of the rules so made particularly on important ferries.

4. It follows from what has been said that all recognised ferries will hence-forth be subject to rules made either under Section 15 or Section 22 of the Ferries Act, breaches of which are punishable by Section 25 of the Act. The operation of these rules should be sufficient to prevent unauthorised persons plying boats for hire. It is particularly necessary to ensure this result at melas and at other times when traffic is particularly heavy.

5. I am finally to request that the attention of all concerned may be drawn to the necessity in the interests of public safety, of strictly enforcing the law and the rules either by the cancellation of existing leases under Section 13 or by the institution of prosecutions under the appropriate sections for every infringement.

Circulars regarding interpretation of Section 9 of the Bengal Ferries Act, 1885

Letter no. 40-44, L.S.G.R., dated the 29th April, 1926, from H.E. Horsfield, Esq., I.C.S., Secretary to the Government of Bihar and Orissa, Ministry of Local Self-Government, to all Commissioners of Divisions.

Subject. - Interpretation of Section 9 of the Bengal Ferries Act, (Act I B.C. of 1885).

I am directed to refer to Mr. Hallett's Circular No. 3336-40-L.S.G.R., dated the 28th September 1923, which contained the statement that "such (ferry) settlements are subject to the approval of the Commissioner" and proceeded to prescribe that if in any case the highest bid was not accepted the reasons for so doing should be recorded in writing. It further laid down that if the Commissioner is not satisfied that the reason for non-acceptance is adequate, he should withhold his approval of the settlement, while in any case a report should be submitted to Government showing all instances (with reasons) for the refusal of the highest bid.

That circular was based upon a misreading of Section 9, Bengal Act I of 1885, (which is not infrequently misprinted)

since it is merely the term (not terms) of the lease which is subject to the approval of the Commissioner. That circular, as also the circular of the Government of Bengal in the Municipal Department, No. 32-M, dated 29th August, 1892, is accordingly now withdrawn, but incidentally, the whole question of ferry settlements has been reviewed and I am to inform you that in supersession of the previous orders it has been decided by His Excellency the Governor, as advised by the Hon'ble Ministers, that in all future settlements of public ferries, whether transferred to local bodies or still retained in the hands of District Magistrates, the procedure detailed in the ensuing paragraphs shall be strictly observed.

2. Section 9 of the Bengal Ferries Act, prescribes lease by auction as the normal method of settling public ferries, and I am directed by Government to emphasise this fact and to state definitely that lease by public auction is to be regarded as the ordinary method of settlement in future. If in any case recourse is had to private settlement the special circumstances justifying that course must be reported through the local officers, for the information of Government at the earliest possible opportunity.

3. In conducting such auctions particular attention should be given to the following points:-

(i)

As provided in the existing rules, all settlements and the term thereof shall be duly advertised.

(ii)

The maximum term shall not exceed three years.

(iii)

New settlements shall be made atleast three months before the existing ones expire.

(iv)

The District Magistrate or the Chairman of the Board must personally hold each auction.

(v)

All intending bidders shall be required to deposit one-fourth of the previous Jama before they are allowed to bid at any auction.

4. I am also to refer to Section 36 of the Act and to Notification No. 217-L.S.G., dated the 12th January 1905, by which the authority to transfer public ferries to local bodies (and by implication to resume them) was vested in Commissioner's Divisions. So far as transfer is concerned all public ferries with the exception of a very few which it is not now proposed to disturb have already been transferred and the power is in abeyance. As regards resumption it is considered necessary that there should be uniformity of practice throughout the province and it has therefore, been decided that the power to resume public ferries transferred to local bodies shall be withdrawn. The Notification of 1905 quoted above, will therefore, be cancelled in due course. I am now to request that if, in future, it seems to you or any District Magistrate under you that any public ferry transferred to a local body is being so mismanaged by that body as to render resumption desirable, you will report the case for the orders of Government.

I am to request you to communicate these instructions to District Magistrates and the first three paragraphs thereof to the District Boards of your division. The revision of the Model Rules on these lines will now be undertaken.

Notification under Section 36 of the Bengal Ferries Act, 1885 regarding delegation of powers to Commissioners of Divisions

Notification No. 3403-L.S.G., dated the 1st December, 1904, by the Government of Bengal, Local Self-Government Department.

In exercise of powers conferred on him by Section 36 of the Bengal Ferries Act, 1885 (Bengal Act I of 1885), the Lieutenant-Governor is pleased to delegate to Commissioners of Divisions in Bengal the following powers conferred upon him by clauses (a), (b), (c) and (f) of Section 6 of the said Act, namely:-

(1)

to declare what ferries shall be deemed public ferries and the respective districts in which, for the purposes of the Act, such ferries shall be deemed to be situate;

(2)

to take possession of a private ferry and declare it to be a public ferry;

(3)

to establish new public ferries, where, in their opinion, such ferries are needed; and

(4)

to discontinue any public ferry which they deem unnecessary.

Notification regarding declaration of the Ferries under the Patna Ganges Ferries as public ferries,

Notification No. G.-4556, dated the 28th November, 1929, by the Commissioner of Patna Division.

In supersession of Notification, dated the 9th October, 1926, published at page 4061, part I of the Bihar and Orissa Gazette, dated the 27th October, 1926, it is hereby notified for general information that under Section 6(a) of the Bengal Ferries Act I of 1885, the Commissioner of the Patna Division in pursuance of the power delegated to him under Section 36 of the said Act, by Notification No. 3403-L.S.G., dated the 1st December, 1904, is pleased to declare that the following ferries situated on the river Ganges between the districts of Saran and Muzaffarpur on the North and Patna on the South bank be deemed to be public ferries and be situate within the district of Patna and that their control shall vest in the District Magistrate of Patna :-

1.
From Digha
to
Pahleza.
2.
Ditto
to
Sabalpur-Mahendru.
3.
Ditto
to
Sabalpur-Ranighat.
4.
Ditto
to
Sonepur.
5.
Ditto
to
Konhara.
6.
Ditto
to
Barabanki.
7.
Ditto
to
Litiahi.
8.
From Mahendru
to
Pahleza
9.
Ditto
to
Sabalpur-Mahendru.
10.
Ditto
to
Sabalpur-Ranighat.
11.
Ditto
to

Sonepur.

12.

Ditto

to

Konhara.

13.

Ditto

to

Barabanki.

14.

Ditto

to

Litiahi.

15.

From Ranighat

to

Pahleza.

16.

Ditto

to

Sabalpur-Mahendru.

17.

Ditto

to

Sabalpur-Ranighat.

18.

Ditto

to

Sonepur.

19.

Ditto

to

Konhara.

20.

Ditto

to

Barabanki.

21.

Ditto

to

Litiahi.

22.

From Khajekalan

to

Pahleza.

23.

Ditto

to

Sabalpur-Mahendru.

24.

Ditto

to
Sabalpur-Ranighat.
25.
Ditto
to
Sonepur.
26.
Ditto
to
Konhara.
27.
Ditto
to
Barabanki.
28.
Ditto
to
Litiahi.
29.
From Marufganj
to
Pahleza
30.
Ditto
to
Sabalpur-Mahendru.
31.
Ditto
to
Sabalpur-Ranighat.
32.
Ditto
to
Sonepur.
33.
Ditto
to
Konhara.
34.
Ditto
to
Barabanki.
35.
Ditto
to
Litiahi.
36.
From Damriahi
to
Pahleza
37.

Ditto
to
Sabalpur-Mahendru,
38.
Ditto
to
Sabalpur-Ranighat.
39.
Ditto
to
Sonepur.
40.
Ditto
to
Konhara.
41.
Ditto
to
Barabanki.
42.
Ditto
to
Litiahi.
43.
From Jethuli
to
Pahleza.
44.
Ditto
to
Sabalpur-Mahendru.
45.
Ditto
to
Sabalpur-Ranighat.
46.
Ditto
to
Sonepur.
47.
Ditto
to
Konhara.
48.
Ditto
to
Barabanki.
49.
Ditto
to
Litiahi.

Notification under Section 35 of the Bengal Ferries Act, 1885

Notification No. 131-L.S.G. dated the 8th January, 1937, by the Government of Bihar, Local Self-Government Department.

In exercise of the powers conferred by Section 35 of the Bengal Ferries Act, 1885 (Bengal Act I of 1885), the Government of Bihar are pleased to direct that the ferry known as Arrarghat, established on the river Loramdhar at the 29th mile of road no. 15, thana Bihpur to Madhepura in the Madhepura sub-division of the district of Bhagalpur, under Notification dated the 10th December, 1936, issued by Commissioner of the Bhagalpur Division, shall be managed by the District Board of Bhagalpur and that all the proceeds of the ferry and all the fines levied and compensation received under the said Act, in respect thereof shall be paid into the district fund.

Notification No. 5-R, dated 7th January, 1982. - In exercise of the powers conferred upon me by Section 6 (C) of the Bengal Ferries Act (Act I of 1885), read with Notification No. 3403 L.S.G. dated the 1st December, 1904. I.T.C.A. Srinivasaramanujam, Commissioner, Bhagalpur Division, Bhagalpur do hereby establish a new public ferry in the district of Bhagalpur for the purposes of the said Act with effect from 1st February, 1982 over the river Ganges between Gairmajarua Khas Bihar Sarkar Plot Nos. 10922 of Mouza Tintanga.

2. This new ferry will be named Tintanga Public Ferry and shall be managed by the District Magistrate, Bhagalpur.

Part IV ? List of Public Ferries in Bihar,

List of Public Ferries District-wise.

Darbhanga District

1. Jitwarpur
2. Nagerbasti
3. Jhahuri
4. Pokharaira
5. Basudeopur
6. Shamatpur
7. Rahmatpur
8. Suatpur
9. Darhia
10. Angar
11. Pahpara
12. Dihuli
13. Bhore-Jairam
14. Kolhua
15. Mahe
16. Singhia
17. Chorghatia
18. Mahthi
19. Rupauli
20. Chakmehsi
21. Rajghat Gonja
22. Neori
23. Gonja
24. Larjha
25. Ladh
26. Manorwa
27. Chechni
28. Kankar
29. Goga
30. Sitwahi
31. Sauliman
32. Pali Rampur
33. Janipur

34.
Ratho
35.
Damla
36.
Kamlabari
37.
Baingra
38.
Baha
39.
Rajghat - Hemanpur
40.
Aral
41.
Chak Saho
42.
Hemanpur
43.
Morwa
44.
Barhoa
45.
Sikatia
46.
Sahorwa
47.
Narainpur
48.
Gaipura
49.
Rampur
50.
Bariahi
51.
Boran
52.
Chakwagudar
53.
Bhagopur
54.
Mushahari
55.
Sadipur
56.
Hassanpur
57.
Manjari
58.
Muradpur
- 59.

Kharari
60.
Hathouri
61.
Rupouli
62.
Bela
63.
Khairamath
64.
Tribhuan Mahiam
65.
Manpura (Khatbaya)
66.
Saidpur (Sussari)
67.
Mehwan (Mahinam)
68.
Akrohar
69.
Sahar
70.
Balwa
71.
Birauli
72.
Mahurapur
73.
Balha
74.
Jagatpur
75.
Khajauli
76.
Bela (Konouli)
77.
Bhakwa
78.
Hatha
79.
Kalaujar
80.
Phuhia
81.
Nemapur
82.
Saidpur
83.
Agai
84.
Hayaghat

85.
Akraha
86.
Koilkund
87.
Ratwara
88.
Ganj
89.
Timohan
90.
Gopalpur
91.
Neodega
92.
Harisinghpur
93.
Gorhari
94.
Laranch
95.
Pouni Chopram
96.
Khesaraha
97.
Motipur
98.
Kanerpi
99.
Panchi
100.
Dhamia
101.
Kharg
102.
Dhamgaraha
103.
Ladho
104.
GarhSiasia
105.
Hardia
106.
Sumbha
107.
Sonkauli
108.
Kanta
- Muzaffarpur District
1. Athar
2. Amer

3. Checher
 4. Repura
 5. Balha Basanta
 6. Bhandiha
 7. Saropatti
 8. Chapra
 9. Dedaul
 10. Atahpur
 11. Kanuani
 12. Gidha
 13. Gularia
 14. Harauli Akhlpur
 15. Hirama
 16. Jamua
 17. Kania-Inar
 18. Madhopur Bangra
 19. Man Bishunpur
 20. Maniari
 21. Pachra
 22. Pojhia
 23. Khajepur
 24. Piroi
 25. Sohansi Sarangpur Sagooni
 26. Simrajalapur Marvey
 27. Sanathi
 28. Tepri
 29. Tejua
 30. Bhalopur
 31. Nanhuchak
 32. Chandwara
 33. Rasulpur
 34. Kolhua
 35. Kalbari
 36. Manikpur
 - *37. Baj
 - *38. Dumra
 - *39. Jatkauli Shampur
 - *40. Lakhanpur
 - *41. Madhkaul
 - *42. Sukki
- *These are rainy season ferries.

Saran District

1. Telpa-Ekauna (Combined Ferry)
2. Sahagpur (managed by Muzaffarpur District Board)
3. Doomri
4. Rewaghat
5. Dumaigrah
6. Darauli
7. Amarpur
8. Dumarahor
9. Pannapur

10. Basantpur
 11. Dighwara
 12. Bharihari
 13. Doriganj Singahi
 14. Semara Jalalpur (This ferry is managed by Muzaffarpur District Board).
 15. Pathra, Sewaich, Sabalpur, Konhara (Management of this ferry has under the Muzaffarpur District Board, vide Government Notification No. 107.L.S.G., dated the 4th February, 1933..
 16. Revilaganj
 17. Manjhi
- Champaran District
1. Bagaha
 2. Ratwal
 3. Sakhawa
 4. Gobindganj
 5. Puchharighat
 6. Dumaria
 7. Dhekaha
 8. Sattarghat
 9. Piparpatti
 10. Jatwa
 11. Sundarpur
 12. Khairwa
 13. Ghorahar
 14. Barnawa
 15. Sariswa
 16. Lalbegia
 17. Haraj
 18. Itwa
 19. Bardaha
 20. Banjaria
 21. Mataria
 22. Sathi
 23. Chaitaghat
- Monghyr District
1. Khutiyaghat
 2. Khagariaghat
 3. Gogrighat
 4. Bindadiara
 5. Dhamahraghat
 6. Kusaila
 7. Mala Asthan
 8. Hetli
 9. Bilkunda
 10. Badla
 11. Matihanighat
 12. Barhwa
 13. Koderia
 14. Baldahi
 15. Kachut
 16. Surajgarhaghat
 17. Abgil

18. Mednichauki
 19. Paharpur
 20. Bahachauki
 21. Jagdishpur
 22. Mustafapur
 23. Balgudarghat
 24. Surjuchakghat
 25. Nababganj
 26. Rachua Nata
 27. Kushamaghat
 28. Isfaghat
 29. Chhatouna Banduaghat
 30. Banduarghat
 31. Pabuaghat
 32. Sheorighat
 33. Pabraghat
 34. Rampurghat
 35. Churan wachak
 36. Atarwaghat
 37. Chhilhai Pakthaulghat
 38. Khizarachak
 39. Alapur
 40. Samsa
 41. Mansurchak
 42. Bhawanipur
 43. Agapur
 44. Charia Bariarpur
 45. Baswara
 46. Bela Bhaubaraghat
 47. Mohanpur
 48. Ramdirighat
 49. Walipur
 50. Pipariaghat
 51. Ahokhat
 52. Mahdeva
 53. Rajwaraghat
 54. Govindpur
 55. Garasandaghat
 56. Sonmanki
 57. Nata Medni
 58. Dengrahi
 59. Argallaghat
 60. Chatarghat
 61. Bhurkanalaghat
 62. Belwarakund
- Purnea District
1. Dingrahaghat
 2. Donapurghat
 3. Dhamdahaghat
 4. Karhagola

These ferries are managed by the Executive Engineer, P.W.D

5. Barsoe (on river Mahananda)
6. Palsa Neraghat
7. Baisaghat
8. Chunapur
9. Sonapur
10. Nwabganj Pokharia
11. Lchgaria
12. Tajpur
13. Morsands
14. Reziganj
15. Yandobh
16. Laibari
17. Dohichand
18. Sundradhar
19. Fullerdhar
20. Pichlaghat
21. Belouri
22. Chanpighat
23. Chandpur
24. Rajghat (on river parwan)
25. Dalmalpur
26. Trisulia
27. Belwa
28. Khosali
29. Rampur
30. Mungra
31. Masuria
32. Ghoramara
33. Matuary
34. Pategna
35. Tarabari
36. Saranpur
37. Lachchafariani
38. Terridher
39. Ghogajagjan
40. Maujabari, Ghooma and Salki
41. Chakla
42. Natuapare
43. Donk
44. Rpadah
45. Sarai
46. Mazkuri
47. Kankal
48. Duraghatti
49. Sabodargi
50. Birpur
51. Lohagarghat
52. Chargharia

S.O. No. 14, dated the 26th March, 2004. - In exercise of the Powers conferred by Clause (a), (e) and (f) of Section 6 of the Bengal Ferries Act 1 of 1885, the Governor of Bihar is pleased to declare the following ferries as Public Ferries of District Katihar after creation of State of Jharkhand, in which Boats, Power Propelled boats, mechanized Power

propelled Crafts, and vessels also may be operated in supersession, of previous Notification No. S.O. 315, dated 27th February, 1979 by which are declared for Public ferries and which are situated on the river Ganges, Koshi and other rivers within the district of Katihar on the North bank, and in the district of Sahebganj on the South bank, of the Ganges and which were revived for better management and Control of the Public ferries by Notification No. S.O. 94, dated 23rd March, 1993 and their Headquarters shall be within the district of Katihar of the State of Bihar and their Control shall vest in the District Magistrate, Katihar.

(2)

The ferries, situated on North bank, of the Ganga and on the Koshi and on other rivers of Manihari Anchal and Amdabad Anchal of District of Katihar shall be managed and controlled by District Magistrate, Katihar in a group or separately.

(3)

This Notification is in supersession of all previous notifications if any, made for the control and management of these ferries or declaring them as Public ferries under Section 6 of the said Act, which is published for general information and all these previous notifications shall be deemed to be cancelled by this Notification.

(4)

This Notification is published for the information to general public.

(5)

It shall come into force at once.

(1)

The list of the names of the Public ferries situated on the bank of Ganga, Koshi and other rivers in Manihari Anchal under Manihari, PS. and Amdabad Anchal under Amdabad P.S. in the district of Katihar in the State of Bihar.

(a)

The name of the Public ferries and Khutagarai on the bank, of Ganga, Koshi and other rivers in Manihari Anchal under Manihari PS. in the district of Katihar in the State of Bihar'.

(1)

Manihari Ghat to Maheshpur Diyara Ghat

(2)

Baidynathpur Ghat to Dhurayahi Ghat.

(3)

Koshi Gopi Chak, Ghat to Lalbathani Diyara Ghat

(4)

Choura Ghat to Kushaha Ghat.

(5)

Rampur Ghat to Manihari Mednipur Ghat

(6)

Fatehpur Ghat to Gujara Ghat.

(7)

Malkayin Ghat to Ratanpur Dilarpur Ghat.

(8)

Dilarpur Ghat to Chorghatiya Ghat.

(9)

Kumaripur Ghat to Gola Ghat.

(10)

Koshban Ghat to Dilarpur Ghat.

(11)

Manihari Ghat to Maskand Khutagarai Ghat.

(12)

Ganga Ghat Barhaka Garkha Ghat) to Manihari Lalbathani Diyara Ghat.

(13)

Mednipur Ghat to Khutagarai Ghat.

(14)

Katakosh Ghat to Amirabad Khutagarai Gola Ghat.

(15)

Baghar Ghat to Garaha Khutagarai Ghat.

(16)

Manihari Storage and Transhipment Ghat to Khutagarai Ghat.

(b)

The Name of the public ferries and Khutagarai Ghat situated on the North bank of the river Ganges and on the bank of Ganga, Koshi and other rivers in Amdabad Anchal under Amdabad RS. in the district of Katihar in Bihar.

(1)

Ghashia Ghat to Teghra Ghat

(2)

Gobindpur Ghat to Teghra Ghat

(3)

Gopalpur Ghat to Amdabad Ghat.

(4)

Murela Ghat to Khutagarai Ghat.

(5)

Lakhanpur Ghat to Gobindpur Ghat.

(6)

Dilli diwanganj Ghat to Dakara Ghat.

(7)

Bhudiya Charguha Ghat to Matiya Charguha Ghat.

(8)

Channi Ghat to Ratawa Ghat.

(9)

Mukund Tola Ghat to Gopalmara Ghat.

(10)

Madua Parha Ghat to Kaduaparha Ghat.

(11)

Fulhar Kladi Ghat to Gobindpur Khutagarai Ghat.

(12)

Fulhar Nadi Kankhar Ghat to Bundeli Khutagarai Ghat.

(13)

Balu Ganwa Ghat to Fulhal Ghat.

3. The Schedule of limits of the Ghata Manihari, Amdabad-Group of Public ferries declared under Section 6 clause (a), (e) and (f) of the Bengal Ferries Act, I of 1885.

(a)

The Public ferries on the Northern bank of the river Ganges and across the river Ganges, Koshi and other rivers and situated between Samda Madarichk in Manihari Anchal under Manihari P. S. on the Western side Mulakha Mukundpur Ghat on Eastern side in Amdabad Anchal under Amdabad P. S. in District of Katihar in the State of Bihar (both the points on the North Bank inclusive).

S.O. 315, dated 27th February, 1979, published in Bihar Gazette, Extraordinary No. 202, dated February 27, 1979. - In exercise of the powers conferred by Clause (a) of Section 6 of the Bengal Ferries Act I of 1885 the Governor of Bihar is pleased to declare the following Ferries situated on the river Ganges and Kosi within the districts of Katihar on the North bank and Santhal Parganas on the South bank to be public ferries with the provision to operate them with power crafts as well. Their headquarters shall be situated within the district of Santhal Parganas and their control shall vest in the Deputy Commissioner Santhal Parganas and shall be managed together in a group with the Sakri Rampore Samdanala public ferry. This notification is in supersession of all previous notifications, if any, made for the control and management of these ferries or declaring them as public ferries under Section 6 of the said Act which is published for general information.

(1)

The names of the ferries situated on the North bank in Manihari Anchal under Manihari P.S. and Amdabad Anchal under

Amdabad P.S. in the district of Katihar and the ferries situated on the South bank in Sahebganj Anchal under Sahebganj P.S. in the district of Santhal Parganas.

(a)

North Bank Manihari Anchal (Manihari RS.), District Katihar.

(i)

Bajinathpur Ghat

(ii)

Kosi Gopinore Ghat

(iii)

Choura Kusha Ghat

(iv)

Ramapore Ferry Ghat

(v)

Fatehpore Gujara Ghat

(vi)

Mai Koran Ghat

(vii)

Dilarpur Ferry Ghat

(viii)

Kumaripore Mela Ghat

(ix)

Manihari Gujara Ghat

(x)

Karakur Nala Ghat (Kosban Ghat)

(xi)

Manihari Maskand Ghat

(xii)

Ganga Ghat Garaha

(xiii)

Mednipore Khutagarai

(xiv)

Katakosh Amirbad Khutagari

(xv)

Batharkhut Garaha

(b)

North Bank Amdabad Anchal (Amdabad PS.), District Katihar

(i)

Gashia Ghat

(ii)

Govindpur Baharkhala Ghat Tagja Ghat

(iii)

Gopalpore Ferry Ghat

(iv)

Basantpore Ferry Ghat

(v)

Murela Khutagarai

(vi)

Lakhanpore Ghat

(vii)

Dillier Diwanganj

(viii)

Matia Charguha Ghat

(ix)

Channi Ghat

(x)

Mukundtola Chobatama

(xi)

Kaduadhar Ghat

(xii)

Fulhar-Nadi Govindpore Khuta Garai

(xiii)

Fulhar Kankher Filhi Khuta

(xiv)

Balu Goh Ghat

(c)

South Bank Sahebganj Anchal (Sahebganj PS.), District Santhal Parganas

(i)

Sakri Rampore Samdanala Ghat

(ii)

Harprasad Rampore Malahitola Ghat

(iii)

Samdanala Bijli Ghat

(iv)

Lalbathani Ghat

(v)

Kishunprasad Gudara Ghat

(vi)

Makhmalpore Lalbathani Ghat

(2)

"Sahebganj-Manihari Ferries" means the public ferries named as below:- "Sahebganj-Manihari group of public ferries".

(i)

Sakri Rampore to Manihary Ferry Ghat

(ii)

Sakri Rampore to Baijnathpur Ghat

(iii)

Sakri Rampore to Kashipore Gopipur Ghat

(iv)

Sakri Rampore to Choura Tusha Ghat

(v)

Sakri Rampore to Rampore Ferry Ghat

(vi)

Sakri Rampore to Fatehpore Gujara Ghat

(vii)

Sakri Rampore to Malkoram Ghat

(viii)

Sakri Rampore to Dilarpore Ferry Ghat

(ix)

Sakri Rampore to Kumarpore Gola Ghat

(x)

Sakri Rampore to Manihari Gudara Ghat

(xi)

Sakri Rampore to Katakush Nala Ghat

- (xii)
Sakri Rampore to Manihari Maskan Ferry Ghat
- (xiii)
Sakri Rampore to Gangaghata Ghat
- (xiv)
Sakri Rampore to Medinpore Ghat
- (xv)
Sakri Rampore to Kantakosh Amirabad Ghat
- (xvi)
Sakri Rampore to Baghar Ghat
- (xvii)
Sakri Rampore to Ghasia Ghat
- (xviii)
Sakri Rampore to Gobindpore Bahr Khal & Tagja Ghat
- (xix)
Sakri Rampore to Gopalpore Ferry Ghat
- (xx)
Sakri Rampore to Basantpore Ferry Ghat
- (xxi)
Sakri Rampore to Murela Ghat
- (xxii)
Sakri Rampore to Dilli Diwan Ganga Ghat
- (xxiii)
Sakri Rampore to Lakhanpore Ghat
- (xxiv)
Sakri Rampore to Matiachar Guha Ghat
- (xxv)
Sakri Rampore to Channi Ghat
- (xxvi)
Sakri Rampore to Mukundtola Chowtamarabe Ghat
- (xxvii)
Sakri Rampore to Jaduapara Ghat
- (xxviii)
Sakri Rampore to Fulhar Nadi Govindpore Ghat
- (xxix)
Sakri Rampore to Fulhar Kankhar Filhi Khuta Ghat
- (xxx)
Sakri Rampore to Balu Goh Ghat
- (xxxi)
Harprasad Rampore Malahi Tola Ghat to Manihari Ferry Ghat
- (xxxii)
Harprasad Rampore Malahi Tola Ghat to Baijnathpur Ghat
- (xxxiii)
Harprasad Rampore Malahi Tola Ghat to Kashipore Goipur Ghat
- (xxxiv)
Harprasad Rampore Malahi Tola Ghat to Choura Tusha Ghat
- (xxxv)
Harprasad Rampore Malahi Tola Ghat to Rampore Ferry Ghat
- (xxxvi)
Harprasad Rampore Malahi Tola Ghat to Fatehpore Gujara Ghat
- (xxxvii)

- Harprasad Rampore Malahi Tola Ghat to Malkoram Ghat
(xxxviii)
- Harprasad Rampore Malahi Tola Ghat to Dilarpore Ferry Ghat
(xxxix)
- Harprasad Rampore Malahi Tola Ghat to Kumarpore Gola Ghat
(xl)
- Harprasad Rampore Malahi Tola Ghat to Manihari Gudara Ghat
(xii)
- Harprasad Rampore Malahi Tola Ghat to Katakush Nata Ghat
(xiii)
- Harprasad Rampore Malahi Tola Ghat to Manihari Maskan Ferry Ghat
(xlili)
- Harprasad Rampore Malahi Tola Ghat to Gangaghat Ghat
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- Harprasad Rampore Malahi Tola Ghat to Mednipore Ghat
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- Harprasad Rampore Malahi Tola Ghat to Kantakosh Amirabad Ghat
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- Harprasad Rampore Malahi Tola Ghat to Basantpore Ferry Ghat
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- Harprasad Rampore Malahi Tola Ghat to Murela Ghat
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- Harprasad Rampore Malahi Tola Ghat to Dilli Diwan Ganga Ghat
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- Harprasad Rampore Malahi Tola Ghat to Matiachar Guha Ghat
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- Harprasad Rampore Malahi Tola Ghat to Matiachar Guha Ghat
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- Harprasad Rampore Malahi Tola Ghat to Channi Ghat
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- Harprasad Rampore Malahi Tola Ghat to Mukund Tola Chowtamaraber Ghat
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- Harprasad Rampore Malahi Tola Ghat to Jaduapara
(lviii)
- Harprasad Rampore Malahi Tola Ghat to Fulhar Nadi Govindpore Ghat
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(lxi)
- Samdanala Bi Ghat to Manihari Ferry Ghat
(lxii)
- Samdanala Bi Ghat to Baijnathpore Ghat
(lxiii)

- Samdanala Bi Ghat to Kashipore Gopipore Ghat
(lxiv)
- Samdanala Bi Ghat to Choura Tusha Ghat
(lxv)
- Samdanala Bi Ghat to Rampore Ferry Ghat
(lxvi)
- Samdanala Bi Ghat to Fatehpur Gujara Ghat
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- Samdanala Bi Ghat to Malkoram Ghat
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- Samdanala Bi Ghat to Dalarpore Ferry Ghat
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- Samdanala Bi Ghat to Kumarpore Gola Ghat
(lxx)
- Samdanala Bi Ghat to Manihari Gudara Ghat
(lxxi)
- Samdanala B Ghat to Katakush Nala Ghat
(lxxii)
- Samdanala Bi Ghat to Manihari Maskan Ferry Ghat
(lxxiii)
- Samdanala Bi Ghat to Gangaghata Ghat
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(lxxxiii)
- Samdanala Bi Ghat to Dilli Diwian Ganga Ghat
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- Samdanala Bi Ghat to Lakhanpore Ghat
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- Samdanala Bi Ghat to Matiachar Guha Ghat
(lxxxvi)
- Samdanala Bi Ghat to Channi Ghat
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- Samdanala Bi Ghat to Mukund Tola Chowtamaraber Ghat
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- Samdanala Bi Ghat to Jaduapara Ghat
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- Samdanala Bi Ghat to Fulhar Nadi Govindpore Ghat

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Samdanala Bi Ghat to Fulhar Kankhar Filhi Khuta

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Lal Bathan Ghat to Basantpore Ferry Ghat

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Kishunprasad Gujara Ghat to Dilarpore Ferry Ghat

(cxxviii)

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(cxxix)

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(cxxx)

Kishunprasad Gujara Ghat to Katakush Nala Ghat

(cxxx)

Kishunprasad Gujara Ghat to Manihari maskan Ferry Ghat

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- Makhmalpore Lalbathani Ghat to Manihari Ferry Ghat
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- Makhmalpore Lalbathani Ghat to Rampore Ferry Ghat
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- Makhmalpore Lalbathani Ghat to Fatehpore Gujara Ghat
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- Makhmalpore Lalbathani Ghat to Malkoram Ghat
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- Makhmalpore Lalbathani Ghat to Dilarpore Ferry Ghat
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- Makhmalpore Lalbathani Ghat to Kumarpore Gola Ghat
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- (clxvi)
Makhmalpore Lalbathani Ghat to Ghasia Ghat
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Makhmalpore Lalbathani Ghat to Gobindpore Bahr Khal & Tagja Ghat
- (clxviii)
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Makhmalpore Lalbathani Ghat to Lakhanpore Ghat
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Makhmalpore Lalbathani Ghat to Matiachar Guha Ghat
- (clxxiv)
Makhmalpore Lalbathani Ghat to Mukund Tola Chowtamarber Ghat
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Makhmalpore Lalbathani Ghat to Fulhar Nadi Govindpore Ghat
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Makhmalpore Lalbathani Ghat to Fulhar Kankhar Filhi Khuta
- (clxxviii)
Makhmalpore Lalbathani Ghat to Balu Goh Ghat
3. Schedule of limits of the "Sahebganj-Manihari group of public ferries" declared under Section 3 clause (d) of the Bengal Ferries Act I of 1885:-
- (a)
The public ferries across the river Ganges on the Northern bank of the river between Madarichak, Manihari P.S. on the Western side and upto Naulakha Ghat, Amdabad P.S. on the Eastern side situated on the road from Katihar to Amdabad (both points on the North bank inclusive).
- (b)
The public ferries across the river Ganges on the Southern bank of the river between Pirpati Nala, Sahebganj P.S. on the Western side and upto Maharajpore Railway Station, Sahebganj/Taljhari P.S. on the Eastern side situated on the road from Sahebganj to Maharajpore (both points on the South bank inclusive).
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